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Case Number: 24STCV15242 Hearing Date: July 9, 2026 Dept: 510

No. 16 - DoctorNow, Inc. v. Blue

Shield, et al.

Defendants' Motion to

Compel Further Responses to Requests for Production

Defendants Blue Shield of

California Life & Health Insurance Company and California Physicians'

Service dba Blue Shield of California (collectively "Defendants") move to

compel Plaintiff DoctorNow, Inc. to serve further responses to requests for

production. Specifically, Defendants seek further responses to request nos. 12

and 20.

Defendants filed this

motion on May 22, 2026. Plaintiff supplemented their responses to request nos.

12 and 20 on June 25, 2026. (Fisher Decl., ¶ 7, Ex. A.) Therefore, the motion

as to compelling further responses is moot. If the supplemental responses

remain deficient, Defendants must file a new motion addressing the defects of

the supplemental responses in a separate statement.

Defendants

request an extreme \$11,880 in sanctions against Plaintiff. The Court declines

to award sanctions.

Disposition

Defendants Blue Shield of

California Life & Health Insurance Company and California Physicians'

Service dba Blue Shield of California's motion to compel further responses to requests for production is denied.

Plaintiff DoctorNow, Inc.'s Motions to Compel Further Responses to Discovery Requests

Plaintiff DoctorNow, Inc. moves to compel Defendants Blue Shield of California Life & Health Insurance Company and California Physicians' Service dba Blue Shield of California (collectively "Defendants") to serve further responses to requests for admission, special interrogatories, and requests for production.

For requests for admission, Plaintiff seeks further responses to request nos. 72-74, 76-92, 93-96, and 99 (25 requests). Plaintiff also seeks a further response to form interrogatory no. 17.1 as it relates to each of those requests (25 requests).

For special interrogatories, Plaintiff seeks further responses to request nos. 69-74, 76, 78-92, and 93-108 (38 requests).

For requests for production, Plaintiff seeks further responses to request nos. 99-107, 109-115, and 117-141 (41 requests),

Evidentiary Objections

Defendants make 4 objections to the Declaration of Fisher. All objections are overruled.

Plaintiff makes 2 objections to Defendants' evidence submitted in opposition. The objections are overruled.

Meet and Confer

Motions to compel further responses must include "a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2030.300(b)(1).) The moving party must make a "reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040 [emphasis added].) "[T]he law requires that counsel

attempt to talk the matter over, compare their views, consult, and deliberate.” (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439.) This rule aims “to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293.)

The parties did not adequately exhaust meet and confer efforts. Both parties are at fault.

Meet and confer efforts between the parties began during a phone call on April 16, 2026. (Fisher Decl. ¶ 44, Ex. 21; Cohen Decl. ¶ 10.) The email correspondence following the call reflects that the call alone was woefully insufficient to address the numerous requests at issue, as the primary purpose of the call was to address other pending discovery issues between the parties. (Fisher Decl. ¶ 44, Ex. 21; Cohen Decl. ¶ 11.) In fact, by way of example, Defense counsel claims they only spoke about their concerns with one defined term in RFP no. 125. (See Opps., at p. 2.) On April 24th, in response to Plaintiff’s April 22 email, Defendants articulated their confusion as to the definitions of certain defined terms and requested further meet and confer the following week. (Fisher Decl. ¶ 44, Ex. 21.) In response, Plaintiff indicated that Defendants had delayed too long in their correspondence (despite Defendants’ follow-up email being sent only two days later), and that Defendants needed to propose alternative definitions for the terms that Plaintiff was using. (Ibid.) Plaintiff then informed Defendants that it intended to file motions to address the disputed requests. (Ibid.)

According to Defense counsel, following this email, Plaintiff’s counsel refused to meet and confer further regarding the disputes, declined to discuss Defendants’ concerns with Plaintiff’s defined terms, and would only meet with Defendants to hear what requests they would comply with. (Cohen Decl. ¶¶ 14-16.)

Further, Plaintiff’s counsel reports that after these motions were filed, Plaintiff tried to meet and confer to resolve the discovery issues, but received no responses to emails sent on June 16 or June 19. (Fisher Reply Decl. ¶¶ 6-7.) Both parties participated in a call on July 1, 2026; however, Plaintiff’s counsel reports that while it proposed to proceed with the call addressing each request one-by-one, Defendants declined to engage in this approach as being “unproductive.” (Id., ¶ 13.) The parties did not resolve any issue during this call. (Ibid.)

This is not meeting and conferring in good faith. After serving hundreds of additional discovery requests, Plaintiff should be willing and prepared to meet and confer on each request if necessary to exhaust its obligations under the Code. Plaintiff made only minimal effort to communicate its concerns with Defendants' responses, and no comprehensive meet and confer letter or correspondence was sent addressing all deficiencies. Instead, Plaintiff rushed to file these motions despite Defendants requesting a more detailed meet and confer effort. Plaintiff then demanded that Defendants serve supplemental responses without any invitation to discuss in good faith or compromise. The Court reminds Plaintiff that the parties are required to meet and confer before the filing of a motion; attempts to meet and confer after the fact do not justify its absence prior to filing.

That said, the Court also notes that Defendants should have responded more promptly to post-filing correspondence to ensure that all disputed discovery requests could be addressed. To the extent Defendants refused to discuss their discovery disputes "request-by-request" in the July 1st phone call, they did not act in good faith to resolve the issues before the Court now.

The Court continues this hearing to July 30, 2026, to allow the parties time to meet and confer on the issues raised in these three motions. The parties must engage in substantive meet and confer efforts, preferably in person or by video conference.

Disposition

Plaintiffs' motions to compel further responses are continued to July 30, 2026. The parties are ordered to engage in good faith meet and confer by video conference or in person no later than July 22, 2026. The parties are ordered to submit a joint statement on or before July 23, 2026, regarding which specific discovery requests, if any, remain at issue for the Court to decide. The Court reserves whether sanctions will be awarded, or forfeited, for failure to participate in a substantive, good faith meet and confer discussion.

If the issues cannot be narrowed through these efforts, given the extensive volume of discovery motion practice in this case, counsel need to be prepared to discuss whether the Court should appoint a discovery referee, who can not only be tasked with making recommendations to the Court regarding the propriety of the discovery and responses, but for allocating the referee's costs between the parties.